

2:00 PM

LINE 3

25-CIV-01884

GEORGINA KOCH, ET AL. VS. KILISTINA D FAKAHAUA PETELO, ET AL.

GEORGINA KOCH

GERALD H SCHER

KILISTINA D FAKAHAUA PETELO

MOTION FOR AN ORDER TO COMPAL PLAINTIFFS GEORGINA KOCH'S AND PENELOPE KOCH'S (A MINOR) BY AND THROUGH HER GUARDIAN AD LITEM, GEORGINA KOCH, RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET NO. ONE

TENTATIVE RULING:

Defendant Valco Cincinnati, Inc.'s Motion for an Order to Compel Plaintiffs Georgina Koch's and Penelope Koch's Further Responses Requests for Production, Set No. One, is GRANTED.

The party to whom an inspection demand is directed must provide a verified response within thirty days service. (Code Civ. Proc., § 2031.240, subd. (a), § 2031.260, subd. (a).) If a party to whom an inspection demand is directed fails to serve a timely response, the party waives all objections and the propounding party may move for an order compelling a response. (*Id.*, at § 2031.300, subds. (a), (b).)

On April 29, 2025, Defendant Valco Cincinnati, Inc. ("Valco") served its first sets, respectively, of inspection demands on Plaintiffs Georgina Koch and Penelope Koch. (Mar. 23, 2026 Motion to Compel Responses, pp. 8–79 ("Henry Decl."), ¶ 2, exh. A.) Neither have provided a timely response. (*Id.*, at ¶¶ 5, 9.)

Accordingly, the motion is GRANTED. Georgina Koch and Penelope Koch shall each serve a separate code-compliant response without objections to the first set of requests for production propounded to them, respectively, by Valco no later than twenty (20) days after service of written notice of entry of the formal order.

No sanctions were requested and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant Valco Cincinnati, Inc. shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 4

25-CIV-01884

GEORGINA KOCH, ET AL. VS. KILISTINA D FAKAHAUA PETELO, ET AL.

GEORGINA KOCH

GERALD H SCHER

KILISTINA D FAKAHAUA PETELO

MOTION FOR AN ORDER TO COMPEL PLAINTIFF GEORGINA KOCH'S FURTHER RESPONSES TO SPECIALLY PREPARED INTERROGATORIES, SET NO. ONE

TENTATIVE RULING:

Defendant Valco Cincinnati, Inc.'s Unopposed Motion for an Order to Compel Plaintiff Georgina Koch's Further Responses to Specially Prepared Interrogatories, Set No. One, is GRANTED.

If a party to whom interrogatories are directed fails to serve a timely response, the party waives all objections and the propounding party may move for an order compelling a response. (Code Civ. Proc., § 2030.290, subds. (a), (b).) When a response has been provided, a propounding party may move for an order compelling a further response if the party deems (1) an answer is evasive or incomplete; (2) a referral to documents is unwarranted or inadequate; or (3) an objection is without merit or too general. (*Id.*, at § 2030.300, subd. (a).)

On April 29, 2025, Defendant Valco Cincinnati, Inc. ("Valco") served its first set of specially prepared interrogatories on Plaintiff Georgina Koch (hereafter, "Georgina," as the plaintiffs in this matter share a surname, no disrespect is intended). (Mar. 23, 2026 Motion to Compel Further Responses, pp. 8–95 ("Henry Decl."), ¶ 2, exh. A.) Georgina failed to provide a timely response. (*Id.*, at ¶ 8.) Eventually, on December 23, 2025, Georgina served a verified response to 'special interrogatories.' (*Id.*, at exh. B.)

It is fairly obvious, however, that the special interrogatories to which Georgina responded were not the forty-one in the set propounded to her but the twenty-five in the separate set propounded to her co-plaintiff. The response sets out the (incorrect) text of each interrogatory purportedly being answered and fails to answer any interrogatories past the twenty-fifth. (See Henry Decl., exh. B; cf. *id.*, at exhs. A, C.) One might argue this response is not a response to the subject interrogatories at all, but at the very least, the response is not "as complete and straightforward as the information reasonably available to the responding party permits" (*id.*, at § 2030.220, subd. (a)) and therefore "evasive and incomplete" (*id.*, at § 2030.300, subd. (a)(1)). When matched with the real interrogatories, the answers to nos. 7–25 are non-sequiturs, and no answers were provided to nos. 26–41 at all.

Accordingly, the motion is GRANTED. Georgina shall serve a further, code-compliant response to the first set of special interrogatories propounded to her by Valco no later than twenty (20) days after service of written notice of entry of the formal order.
